

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1308

BY JUDICIARY AND RULES COMMITTEE

AN ACT

RELATING TO THE UNIFORM MEDIATION ACT; AMENDING SECTION 9-807, IDAHO CODE,
TO REMOVE A PROVISION REGARDING WHAT A MEDIATOR MAY DISCLOSE AND TO MAKE
TECHNICAL CORRECTIONS; AND DECLARING AN EMERGENCY AND PROVIDING AN EF-
FECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 9-807, Idaho Code, be, and the same is hereby
amended to read as follows:

9-807. PROHIBITED MEDIATOR REPORTS. (1) Except as otherwise provided
in subsection (2) of this section, a mediator may not make a report, assess-
ment, evaluation, recommendation, finding, or other communication regard-
ing a mediation to a court, administrative agency, or other authority that
may make a ruling on the dispute that is the subject of the mediation.

(2) A mediator may disclose:

(a) Whether the mediation occurred or has terminated, whether a settle-
ment was reached, and attendance;

(b) A mediation communication as permitted ~~under~~ pursuant to section
9-806, Idaho Code; or

(c) A mediation communication evidencing abuse, neglect, abandonment,
or exploitation of an individual to a public agency responsible for pro-
tecting individuals against such mistreatment; ~~or.~~

~~(d) In mediation governed by Idaho rule of civil procedure 16(j), in-~~
~~formation permitted under Idaho rule of civil procedure 16(j).~~

(3) A communication made in violation of subsection (1) of this section
may not be considered by a court, administrative agency, or arbitrator.

SECTION 2. An emergency existing therefor, which emergency is hereby
declared to exist, this act shall be in full force and effect on and after
July 1, 2026.